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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF OKLAHOMA

(1) BARBARA BARRICK, as Special Administrator of the ESTATE OF BOBBY DALE BARRICK, deceased,	)
Plaintiff,	)
v.	)
(2) BOARD OF COUNTY COMMISSIONERS OF McCURTAIN COUNTY, OKLAHOMA,	)
(3) McCURTAIN COUNTY SHERIFF KEVIN CLARDY,	)
(4) DEPUTY MATTHEW KASBAUM,	)
(5) DEPUTY QUENTIN LEE,	)
(6) DEPUTY KEVIN STOREY, and	)
(7) WARDEN MARK HANNAH,	)
Defendants.	)

Case No. CIV-23-129-GLJ

JURY TRIAL DEMANDED
ATTORNEY LIEN CLAIMED

COMPLAINT

Plaintiff Barbara Barrick ("Plaintiff"), as Special Administrator of the Estate of Bobby Dale Barrick ("Barrick" or "Decedent"), hereby brings the following causes of action against Defendants, Board of County Commissioners of McCurtain County, Oklahoma ("BOCC"), McCurtain County Sheriff Kevin Clardy ("Clardy"), Deputy Matthew Kasbaum ("Kasbaum"), Deputy Quentin Lee ("Lee"), Deputy Kevin Storey ("Storey"), and Warden Mark Hannah ("Hannah," collectively "Defendants"), and alleges as follows:

10. At all times relevant to the claims asserted herein, Clardy was acting under color of state law.

11. Plaintiff's claims for relief in this Complaint are brought against Clardy in his official capacity as McCurtain County Sheriff.

12. "A claim against a government actor in his official capacity is essentially another way of pleading an action against the county ... he represents." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014).

13. The naming of McCurtain County Sheriff Kevin Clardy in his official capacity in this action is the functional equivalent of suing McCurtain County. *Id.*; *Morgan v. Unknown Nurse #1*, 2015 WL 9593622 *1 (N.D.Okla.) (holding "a suit against the sheriff in his official capacity is the same as naming the county"); *Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #22, p. 9 (in which the Board of County Commissioners of Muskogee County expressly conceded that the Muskogee County Sheriff "does not enjoy a separate legal existence from Muskogee County").

14. McCurtain County "may be held liable for an act it has officially sanctioned, or for the actions of an official with final policymaking authority." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014). *See also Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #60, p. 3.

15. As McCurtain County Sheriff, Clardy is a county "official with final policymaking authority." *See id.* at 1218; *Randle v. City of Aurora*, 69 F.3d 441, 448 (10th Cir. 1995).

16. Additionally, Clardy serves as Chairman of the McCurtain County Jail Trust Board of Trustees and, according to the official McCurtain County web page, "[h]as [the] power and authority to operate the County Jail." *See* https://mccurtaincountyok.org/offices/county-sheriff.

17. As reported in the McCurtain County Gazette-News (Sept. December 9, 2021):

> In the recent interview, when asked about the jail trust, [McCurtain County Sheriff Kevin Clardy] said, by state law, the jail trust only manages financial aspects of the jail, [and] the sheriff does everything else.
>
> "State law states the sheriff has full control of the jail and its employees. That's state law, but the jail trust is over all financial aspects of the jail," Clardy said.

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